REPORTABLE (9)

PRINCE DUBEKO SIBANDA

v

THE PARLIAMENT OF ZIMBABWE

CONSTITUTIONAL COURT OF ZIMBABWE
GWAUNZA CJ, GARWE DCJ, MAKARAU JCC, GOWORA JCC,
HLATHSWAYO JCC, PATEL JCC & GUVAVA AJCC
HARARE, 20 MAY & 17 JUNE 2026

L. Madhuku with *L. Uriri*, *T. Zhuwarara* and *A. Muchadehama*, for the applicant

S. Hoko with *A. Demo*, for the respondent

PATEL JCC:

This is an application brought before the Court in terms of s 167(2)(d) of the Constitution of Zimbabwe, 2013, as read with r 32(1) of the Constitutional Court Rules, 2025. The applicant impugns the conduct of the respondent in publishing and continuing to process the Constitution of Zimbabwe Amendment (No. 3) Bill, 2026 (hereinafter "the Bill"). More particularly, he challenges clauses 4(b) and 9(b) of the Bill on the basis that, by employing *non obstante* provisions purporting to operate "notwithstanding section 328(7) of the Constitution", these clauses are inconsistent with the substantive limitation in that subsection on the amendment of term-limit provisions. The applicant accordingly contends that the respondent has failed to fulfil constitutional obligations arising under ss 117(2)(a), 119(1), 324 and 328 of

the Constitution. Thus, he seeks declaratory and consequential relief, halting the further parliamentary processing of the Bill in its current form.

The Background

The applicant is an adult male Zimbabwean citizen and a registered voter. He was formerly a Member of the National Assembly for the Binga North constituency. The respondent is the Parliament of Zimbabwe, the legislative organ of the State whose composition and authority are prescribed by Chapter 6 of the Constitution.

On 10 February 2026, a post-Cabinet briefing was issued indicating that the President and Cabinet had met and approved, *inter alia*, the Constitution of Zimbabwe Amendment (No. 3) Bill, 2026. The Bill proposes various reforms to the Constitution. On 16 February 2026, in compliance with s 328(3) of the Constitution, the Speaker of the National Assembly gave notice in the *Gazette* of the precise terms of the Bill. Following such notice and in fulfilment of the obligation imposed by s 328(4), the respondent commenced the process of inviting members of the public to express their views on the proposed Bill. This was enabled through both public meetings convened across the country and by way of written submissions.

It is common cause that, as at the time of the present application, the parliamentary processing of the Bill stood at the public consultation stage. At the date of the hearing of this matter, that stage had just been concluded. However, the Bill had not been read at any stage in either the National Assembly or the Senate. The debate contemplated by the Standing Rules and Orders of Parliament had not yet taken place. The Bill had not been voted upon at any reading and it had not been transmitted from one House to the other. Nor had it been presented to the President for assent under s 131 of the Constitution. In short, at this juncture, the Bill remains a draft and not a substantive constitutional amendment.

It is against the foregoing factual matrix that the applicant has approached this Court for relief under s 167(2)(d) of the Constitution.

The Applicant's Case

The applicant impugns the conduct of the respondent in the publication and intended processing of the Constitution of Zimbabwe Amendment (No. 3) Bill, 2026. It is averred that the Bill contains constitutionally invalid proposals that purport to negate the substantive limitations imposed by the Constitution upon the power to amend its provisions. As a consequence, the respondent is said to have failed to comply with and to have acted inconsistently with binding constitutional obligations regulating both the existence and the limits of the power to amend the Constitution. The application is brought in terms of s 167(2)(d) of the Constitution as read with r 32(1) of the Constitutional Court Rules, 2025.

The applicant's grievance is directed principally at clauses 4(b) and 9(b) of the Bill. These clauses, the applicant pleads, employ *non obstante* provisions purporting to operate "notwithstanding section 328(7) of the Constitution" and thereby to extend the term-limit provisions applicable to the office of the President and to the life of Parliament respectively, in a manner inconsistent with the substantive limitation entrenched in s 328(7). The Bill, on this account, is *ex facie* non-compliant with the Constitution. The Bill is said to expressly acknowledge that an amendment to the Constitution must comply with the requirements of s 328 and yet to contain, in the same breath, provisions that purport to override the substantive limitation contained in s 328(7).

The constitutional obligations identified in the founding papers are drawn from several provisions of the Constitution. The applicant invokes s 117(2)(a), which confers on the Legislature the power to amend the Constitution "in accordance with section 328". He also invokes s 119(1) and (2), which oblige the respondent to protect the Constitution and to ensure

that the State and all institutions and agencies of government at every level act constitutionally. He further invokes s 324 of the Constitution, which commands that all constitutional obligations must be performed diligently and without delay. In addition, he invokes s 328 itself, with specific focus on s 328(7) as the substantive limitation against which the impugned clauses must be measured. Last but not least, s 2 of the Constitution is also relied upon as the supremacy clause to which all conduct of State organs is subject.

The applicant pleads that the respondent's constitutional obligation is not discharged by the mere assertion that it is "following a legislative process". It is contended that the respondent's conduct must comply with the Constitution from the outset. The publication of a Constitutional Amendment Bill is itself a constitutional act undertaken by a constitutional organ. It is, accordingly, subject to the strictures and censure of the supremacy clause. The applicant avers that the impugned clauses amount to an unlawful attempt to circumvent the substantive limitation in s 328(7) and that s 328 operates as a legal barometer of what the respondent may competently place before the nation as a constitutional amendment. It is further argued that the constitutional harm cannot be left to mature until the day of presidential assent, as that would generate avoidable constitutional conflict.

The Respondent's Case

The respondent has opposed the application. In the opposing affidavit, deposed to by the Speaker of the National Assembly, several procedural and substantive points are taken.

The respondent's principal objection is that the matter is premature and not yet ripe for adjudication. Reliance is placed, in this regard, upon the alternative mechanisms embodied in s 131(6) and s 131(8)(b) of the Constitution. Under these provisions, the President is empowered, where he entertains reservations about the constitutionality of a Bill passed by Parliament, to refer it back to Parliament. He may further refer the matter to this Court for an

advisory opinion on the constitutionality of the Bill. To pronounce upon the impugned clauses at this stage, so the respondent submits, would disable the President from performing his constitutional role and would amount to the Court assuming the functions of both the respondent and the President in the law-making process. The respondent points, by way of practical illustration, to several Bills which have in the past been referred back to Parliament by the President. Amongst them, it lists the example of the University of Zimbabwe Amendment Bill (1990), the Special Economic Zones Bill (2016) and the Mines and Minerals Amendment Bill (2018).

On a related note, the respondent contends that the parliamentary law-making process has only recently commenced and that the applicant's grievance ought in the proper course to have been ventilated through the public consultations being convened by the respondent across the country. It is further contended that the clauses under scrutiny may yet be modified or removed in the course of the ongoing legislative process. To excise those clauses by judicial order, at a stage when the views of the public are still being received, would be improper.

On the merits, the respondent submits that the drafting and production of the Bill is a shared exercise involving the input of several State actors. The Bill, so the respondent pleads, originated from Cabinet, was drafted by the Minister of Justice, Legal and Parliamentary Affairs and was finally transmitted to the Speaker of the National Assembly. The respondent disavows responsibility for either the principles or the precise terms of the Bill. Reliance is placed upon s 114(c) of the Constitution, which imposes the duty of drafting legislation upon the Attorney-General, and upon s 110(3)(c)-(d), which assigns to Cabinet the obligation to prepare, initiate, develop and implement national legislation. In this case, it is averred that this responsibility was discharged through the Minister of Justice. On that basis, the respondent submits that the Minister ought to have been cited as a party to these proceedings.

The Speaker, as the deponent to the respondent's opposing affidavit, pointedly declined to comment upon the substantive content of the impugned clauses. It was said that to do so, given the Speaker's standing as head of Parliament, would create an appearance of partiality and would undermine the integrity of the ongoing public consultations. It is maintained that the Minister of Justice would have been best placed to respond to the merits of the applicant's claim.

Finally, the respondent contends that the relief sought, in particular the consequential relief directing the respondent to halt the Bill or to re-introduce it, shorn of the impugned clauses, would place this Court in an invidious position. It would amount to an unacceptable usurpation of the functions of the Legislature.

The Applicant's Replication

In his answering affidavit, the applicant reiterates that the failure of which he complains has already occurred and is complete. The references to s 131(6) of the Constitution are said to be inconsequential, as they relate to the office of the President and not to the obligations of the respondent. The applicant denies, in robust terms, that the constitutional obligations in question are shared between the respondent and the Executive. He rejects the contention that the Minister of Justice ought to have been cited. He alleges that the respondent has, in substance, abdicated its constitutional responsibilities by deferring to the Executive on the merits of the matter. It is consequently submitted that, should the preliminary objections be disposed of in his favour, he is entitled to the relief sought.

The Relief Sought

At the commencement of the hearing, Mr *Madhuku*, for the applicant, made an application to amend the relief sought by the insertion of a new paragraph, immediately after the first paragraph of the draft order, so as to preface the ensuing declarations that were sought.

In motivating the application, Mr *Madhuku* submitted that the jurisprudence of this Court requires an applicant under s 167(2)(d) of the Constitution to plead, with reasonable precision, two distinct matters: firstly, the constitutional obligation alleged to have been breached; and, secondly, the conduct or omission constituting the failure to fulfil that obligation. The application to amend the draft relief sought was made with the concurrence of the respondent. The Court duly granted leave to amend the draft order in the terms proposed. The relief sought, as amended, was accordingly framed in the following terms:

1. The application be and is hereby granted.
2. It be and is hereby declared that the respondent has failed to fulfil its constitutional obligation set out in s 328(7) of the Constitution as read with ss 119(1) and (2).
3. It be and is hereby declared that the respondent's authority to amend the Constitution is exercisable only in accordance with s 328 of the Constitution, and that s 328(7) prohibits the application of a term-extension amendment to any person who held or occupied the relevant office (or an equivalent office) at any time before the amendment.
4. It be and is hereby declared that clauses 4(b) and 9(b) of the Constitution of Zimbabwe Amendment (No. 3) Bill, 2026, are inconsistent with s 328(7) of the Constitution and are therefore constitutionally incompetent, unlawful, and of no force or effect.
5. The respondent shall not present, process, debate, vote upon, or otherwise proceed with the Bill insofar as it contains the impugned clauses.
6. The respondent is directed, within a reasonable time, to withdraw and re-introduce the Bill with clauses 4(b) and 9(b) removed, alternatively to cause the Bill to proceed only in a form that excludes the said clauses as severed and of no force.
7. There shall be no order as to costs.

Submissions for the Applicant

Mr *Madhuku*, for the applicant, submits that the obligation imposed upon the respondent under s 328 of the Constitution attaches from the very inception of the constitutional amendment process, that is, from the moment the respondent contemplates initiating a

Constitutional Bill. He argues that, when read together, ss 117(2), 119, 130, 324 and 328 of the Constitution impose upon the respondent a continuous and self-executing duty to ensure that any Constitutional Bill is compliant with the Constitution *ex facie* and at source.

It is further contended that Constitutional Bills constitute a *sui generis* category of legislation which may only be initiated by the respondent. Reliance is placed on s 117(2) of the Constitution, which separates the power to amend the Constitution from the power to make laws for the peace, order and good governance of Zimbabwe, and on s 130 of the Constitution, which empowers the respondent to initiate, prepare, consider, pass or reject any legislation. Counsel submits that a Constitutional Bill cannot originate from Cabinet under s 110(3)(c) of the Constitution, as that provision speaks only of "national legislation" and not of amendments to the Constitution.

Counsel further submits that the Parliamentary Legal Committee has no jurisdiction to scrutinise a Constitutional Bill by reason of s 152(3)(a) of the Constitution as read with paragraph 8(2) of the Fifth Schedule. It follows, therefore, that a Constitutional Bill must be constitutionally compliant at the point of origin, since there is no internal parliamentary mechanism through which its constitutionality can subsequently be examined or cured.

Mr *Madhuku* invites the Court to find that the reference to "the Speaker" in s 328(3) of the Constitution, properly construed, is a reference to Parliament itself. He relies upon *Gonese & Anor* v *President of the Republic of Zimbabwe & Ors* 2018 (2) ZLR 670 (CC) and *Hove* v *Parliament of Zimbabwe & Ors* CCZ-12-23 for the proposition that, for the performance of constitutional obligations, certain functionaries of the respondent must be treated as the respondent itself. He seeks to distinguish the decision of this Court in *Mushoriwa* v *Speaker of the National Assembly & Ors* CCZ-4-23 on the basis that the precise point now being advanced was not before the Court in that matter.

Mr *Madhuku* emphasises that s 119(2) of the Constitution imposes upon the respondent a continuing duty to ensure that the State and all institutions and agents of government at every level act constitutionally. He contends that the applicant's case is not concerned with the subjective view of the respondent as to the constitutionality of the Bill. His submission is that the obligation under s 167(2)(d) is objective and the respondent cannot avoid responsibility by pleading a different construction of the Constitution.

On the question of ripeness, Mr *Madhuku* refers the Court to the South African Constitutional Court's decision in *Economic Freedom Fighters & Ors* v *Speaker of the National Assembly & Anor* 2018 (2) SA 571 (CC). He submits that the court therein did intervene in an ongoing parliamentary process. He argues that the doctrine of comity between organs of the State, as articulated in *Doctors for Life International* v *Speaker of the National Assembly & Ors* 2006 (6) SA 416 (CC), does not preclude the intervention of this Court where a continuing breach of s 167(2)(d) is in issue. This was particularly relevant where the alleged unconstitutionality cannot be cured *ex post facto*. The applicant's case is characterised as one of continuing failure. Once the respondent publishes a Bill that is *ex facie* non-compliant with the Constitution, it cannot permit the legislative process to continue.

It was put to counsel by the Court that there is an established practice of judicial restraint, founded on the doctrine of comity, whereby the Court defers to the ongoing legislative processes of the respondent, and counsel was invited to address the question why the Court should depart from that practice in the present matter. Counsel responds that the jurisdiction conferred by s 167(2)(d) is intended precisely to address sensitive matters touching on the separation of powers. He refers to recent jurisprudence from South Africa which demonstrates that constitutional courts will intervene in parliamentary processes where a clear breach of any constitutional obligation is apparent on the face of a Bill.

The Court further enquired what role would remain for parliamentary debate, scrutiny and amendment, if a Bill were required to be constitutionally flawless upon publication. Counsel submits that the parliamentary process is principally concerned with the political choices reflected in a Bill rather than with constitutional compliance *stricto sensu*. Where a Bill is manifestly inconsistent with the Constitution, it undermines constitutional order to permit it to remain before Parliament. He stresses that the applicant does not seek perfection but constitutional compliance *ex facie* the Bill.

It was put to counsel that, if his submission was correct, no role would remain for this Court in the constitutional examination of a Constitutional Bill, as every such Bill would be perfect from inception. Counsel responds that this Court's jurisdiction is continuous in respect of Constitutional Bills and that, once a constitutional amendment has been enacted, the Court is confined to reviewing procedure rather than content. It is for that reason that this Court must retain and exercise jurisdiction to intervene at the pre-enactment stage.

Submissions for the Respondent

Mr *Hoko*, for the respondent, raises several points *in limine* and on the merits. Firstly, it is submitted that the applicant has failed to correctly identify the functionary upon whom the Constitution imposes the duty alleged to have been breached. The applicant has identified the respondent, whereas the duty to give notice in the *Gazette* of the precise terms of a Constitutional Bill in terms of s 328(3) of the Constitution is imposed upon the Speaker of the National Assembly. Reliance is placed on *Mushoriwa* v *Speaker of the National Assembly & Ors* (*supra*) at paras 49, 51 and 97, where this Court held that the Speaker, in giving such notice, acts in his official capacity as Speaker and not as a functionary of the respondent, and that this is one of the scenarios in which the conduct of the Speaker does not bind the respondent. On this basis alone, counsel prays that the matter be struck off the roll.

Secondly, it is submitted that the applicant's case is, in substance, a challenge to the conduct of the respondent rather than an allegation of a failure to fulfil a specific constitutional obligation. Reference is made to the case of *Mujuru* v *President of the Republic of Zimbabwe & Ors* 2018 (1) ZLR 93 (CC) in which this Court is said to have held that, where a party seeks a declaration that the conduct of an organ of State is inconsistent with the Constitution, the proper application is one that is brought in terms of s 85 of the Constitution. The decision of the Constitutional Court of South Africa in *Zuma & Anor* v *President of the Republic of South Africa* [2025] ZACC 21, at para 140, is also cited to similar effect. Counsel submits that s 328(7) of the Constitution does not impose any specific obligation upon the respondent that would engage this Court's review jurisdiction under s 167(2)(d) of the Constitution.

It was put to counsel by the Court that the failure to fulfil a constitutional obligation may take the form either of positive conduct or of an omission. Counsel concedes this point but submits that the obligation envisaged by s 167(2)(d) must be one that is specifically imposed by the Constitution upon the functionary concerned and not one to be merely inferred or implied.

Thirdly, on the question of ripeness, counsel submits that the matter is not ripe for adjudication, as the Bill has not been enacted and remains a mere proposal. Reliance is placed on *Combined Harare Residents Association* v *Minister of Local Government, Public Works & National Housing* CCZ-3-24, at para 123, which endorsed *Zimbabwe Women Lawyers Association* v *Minister of Justice, Legal and Parliamentary Affairs* CCZ-13-21, to the effect that, until the fate of a Bill is known, it would be premature for this Court to determine the constitutionality of any clause contained within it. Counsel relies further on *Ex Parte President of the Republic of South Africa: In re Constitutionality of the Liquor Bill* 2000 (1) SA 732 (CC),

at para 11, where the Constitutional Court of South Africa held that a Bill, not being law, cannot be the subject of a declaration of constitutional invalidity.

Furthermore, it is submitted that, by virtue of s 167(2)(a) of the Constitution, this court may pronounce upon the constitutional validity of proposed legislation only where the legislation has been referred to it in terms of the Constitution. In the case of a Constitutional Bill, such reference may only be made by the President in terms of s 131(8)(b) of the Constitution. An application under s 167(2)(d), counsel submits, is not a competent pathway through which proposed legislation may be referred to this court for constitutional review. An analogy is drawn with s 79 of the South African Constitution, which is materially similar to s 131(8)(b) and which informed the reasoning of the South African Constitutional Court in the *Liquor Bill* case (*supra*).

When the Court sought clarification as to whether his submission entailed that this Court had on previous occasions overstepped its mandate in entertaining challenges to Constitutional Bills, counsel responds that his proposition was novel. He argues that the import of s 167(2)(a) of the Constitution had not previously been argued in this jurisdiction and was being advanced for the first time.

The Court further enquired as to counsel's appreciation of the stages of initiation, preparation, consideration and rejection of a Bill as contemplated by s 130 of the Constitution and whether there exists any pre-publication parliamentary process recognised by the Constitution or by the Standing Rules and Orders of Parliament. Counsel submits that no such parallel process exists in respect of Constitutional Bills, which can only be initiated through s 328(3) as read with s 110(3)(c) of the Constitution. He refers the Court to *Chironga & Anor* v *Minister of Justice & Ors* 2020 (2) ZLR 633 (CC) in respect of the recognised pre-Bill Cabinet processes. The role of the Speaker in publishing the precise terms of the Bill was purely

facilitative, as was held by this Court in *Madzimure & Ors* v *President of the Senate, Holland & Ors* v *President of the Senate & Ors* 2019 (1) ZLR 601 (CC).

When it was put to counsel that, on the applicant's reading, s 117(2) requires compliance with both the procedural and substantive provisions of s 328, counsel responds that s 117(2) requires compliance with the procedural and initiating provisions of s 328 only. The applicant's intimation that a purported parliamentary committee adjudicates the constitutionality of Bills before publication has no foundation either in the Constitution or in the Standing Rules and Orders.

Moreover, counsel submits that there is a settled judicial practice, recognised in this jurisdiction and in South Africa, under which the courts will not interfere in ongoing parliamentary law-making processes. *Doctors for Life International* v *Speaker of the National Assembly & Ors* (*supra*) is cited as authority for the doctrine of comity Additionally, *Mushoriwa's* case (*supra*), at paras 49 and 79, is relied upon for the proposition that members of the respondent would, in considering a Bill in the Committee of the Whole House, take into account the submissions made by members of the public during the public consultation phase. It was accordingly premature for this Court to determine the constitutionality of any clause the fate of which before the respondent is not yet known.

Finally, counsel refers the Court to its recent pronouncement in *Fuza & Anor* v *The Parliament of Zimbabwe & Anor* CCZ-2-26, at para 49, to the effect that a litigant retains the right to challenge the lawmaking process even after a Bill has come into effect and that the matter is therefore not rendered moot by deferral. He concludes by entreating the Court to permit the Legislature to exercise its self-regulatory mechanisms and, as a consequence, to strike the matter off the roll.

Reply for the Applicant

In reply, Mr *Madhuku* reiterates that the Speaker, in the exercise of the duty imposed by s 328(3), acts on behalf of and as the respondent and that this point was not before the Court in *Mushoriwa's* case (*supra*). He further submits that the Constitutional Court of South Africa's decision in the *Economic Freedom Fighters* case (*supra*) establishes that constitutional courts will intervene in ongoing parliamentary processes where a constitutional breach is apparent. The applicant's case is characterised as one of continuing failure by the respondent. Once the respondent publishes a Bill that is, *ex facie*, non-compliant with the Constitution, it cannot permit the legislative process to continue. The applicant prays that the Bill be stopped at this stage and that the matter be remitted to the respondent for compliance with the Constitution.

The Issues for Determination

Several distinct issues which arise in the founding and opposing papers were canvassed before the Court. These include the following: whether the Minister of Justice should have been joined to these proceedings; whether the applicant has identified, with the requisite precision, a specific constitutional obligation imposed upon the first respondent to engage the narrow jurisdiction conferred by s 167(2)(d) of the Constitution; whether the proper functionary has been cited; whether the matter falls instead to be channelled through s 167(2)(a) as read with s 131(8)(b) of the Constitution; and the question, to which both counsel devoted considerable argument, as to whether the matter is presently ripe for adjudication by this Court.

Non-Joinder of Minister of Justice

It is convenient to begin with the preliminary point on non-joinder, the disposition of which stands apart and does not bear materially upon the remaining issues. The respondent objects that the Minister of Justice, Legal and Parliamentary Affairs ought to have been cited as a party to the proceedings. The objection is founded on the proposition that the drafting of

the Bill and its transmission to the Speaker of the National Assembly were the work of the Minister, with the input of the Attorney-General and other State actors. It is submitted, on the strength of this Court's decisions in *Mushoriwa & Ors* v *Parliament of Zimbabwe & Ors* (*supra*) and *Ndewere* v *The President of Zimbabwe* CCZ 3-25, that the non-citation of the Minister is fatal to the present application.

In my view, this objection cannot be sustained. The principle articulated in *Mushoriwa* (*supra*) and *Ndewere* (*supra*) is narrow in scope. It applies where the conduct of another functionary is itself implicated in the alleged failure and where specific allegations are levelled against that functionary, such that the Court may require that functionary to place facts before it to enable a proper determination of the matter. In *Ndewere* (*supra*), at para. 31, the correct position was explained by Garwe JCC (as he then was) as follows:

> "… the position may now be regarded as settled that, where the conduct of other actors is implicated in an application alleging the failure to fulfil a constitutional obligation by either the President or Parliament, then such persons must be cited as respondents, though no relief under s 167(2)(d) is sought against them. … *Where the application implicates the conduct of other actors as having been involved in or having facilitated such failure, then these other persons must be cited as respondents so that they can, if necessary, place facts before the Court to enable the Court to come up with appropriate findings on the matter*." (my emphasis)

The qualification embedded in this passage is decisive of the point. In *casu,* the applicant's founding papers contain no allegation against the Minister of Justice. The applicant's grievance is not directed at the drafting of the Bill, nor at the formulation of clauses 4(b) and 9(b), nor at the transmission of the Bill from Cabinet to the Speaker of the National Assembly. It is directed, exclusively, against the conduct of Parliament in publishing and continuing to process a Bill said to offend s 328(7) of the Constitution. Given that the allegations contained in the founding affidavit, as pleaded by the applicant, have been levelled exclusively against the respondent, there is no justifiable cause for the compulsory joinder of

the Minister. The Minister's conduct is not impugned and he stands outside the controversy as pleaded.

Accordingly, the preliminary point taken by the respondent in respect of the non-joinder of the Minister of Justice falls to be dismissed as being without merit.

The Jurisdiction Conferred by Section 167(2)(d) of the Constitution

Section 167(2)(d) of the Constitution confers upon this Court the exclusive jurisdiction to determine whether Parliament or the President has failed to fulfil a constitutional obligation. The jurisdiction conferred is narrow and exceptional. Rule 32(1) of the Constitutional Court Rules, 2025, prescribes that an application of this nature must be supported by an affidavit setting out the constitutional obligation in question and what Parliament or the President is alleged to have failed to do in respect of that obligation. The need for precision in pleading these two elements of the cause of action under s 167(2)(d) has been emphasised by this Court on many occasions. See *Mliswa* v *Parliament of Zimbabwe* CCZ 2-21, at p 8; *Hove* v *Parliament of Zimbabwe* CCZ 12-23 at p 8; *Ndewere* v *The President of Zimbabwe* (*supra*).

It is well established that not every duty cast upon Parliament or upon the President by the Constitution gives rise to a justiciable "obligation" within the meaning of s 167(2)(d). This distinction was drawn by Makarau JCC in *Fuza & Anor* v *The Parliament of Zimbabwe & Anor* (*supra*), at pp 14-15. There is, as she observed, a subtle but real difference between a duty, which may or may not be justiciable, and an obligation imposed by the Constitution upon Parliament or the President, which by virtue of s 167(2)(d) is mandatory and enforceable. In the present matter, however, it is not necessary at this stage to determine the nature of the obligations invoked by the applicant.

The Character of Section 328 of the Constitution

Before turning to the question of ripeness, it is useful and necessary to make some preliminary observations on the character of s 328 of the Constitution. This provision lies at the heart of the applicant's grievance. On careful examination, it is apparent that this entrenched section is composite in character. Some of its provisions are evidently procedural, whilst others are substantive in nature and effect.

The procedural provisions are those which prescribe the manner in which a Constitutional Bill is to be brought before Parliament, considered and passed. Section 328(3) requires the Speaker to give at least ninety days' notice in the *Gazette* of the precise terms of the Bill before it is presented in either House. Section 328(4) requires Parliament, immediately after such notice has been given, to invite members of the public to express their views on the proposed Bill, both at public meetings and by way of written submissions. Section 328(5) requires the affirmative votes of two-thirds of the membership of each House at the last reading of the Bill.

Section 328(6) imposes the further procedural requirement of a national referendum where a Constitutional Bill seeks to amend any provision of Chapters 4 or 16 of the Constitution. Section 328(8) prohibits the amendment of the section itself, except by way of special procedure, and s 328(10) requires the relevant certifications by the Speaker and the President. These are, in their essential nature, procedural mandates. They regulate the manner in which the power of constitutional amendment is to be exercised.

By contrast, ss 328(2), (7) and (9) are substantive in their character. Section 328(2) provides that an Act of Parliament that amends the Constitution must do so in express terms. Section 328(7) declares that an amendment to a term-limit provision, the effect of which is to extend the length of time that a person may hold or occupy any public office, does not apply in

relation to any person who held or occupied that office, or an equivalent office, at any time before the amendment. Section 328(9) entrenches the amendment of the section itself by assimilating it to a Chapter 4 amendment. In effect, any amendment of the section is given equal status as a proposed modification of the Declaration of Rights and is subjected to the same procedural safeguards, including the requirement of a national referendum. These provisions do not regulate the procedure of amendment. They regulate the content of any amendment that may be made. They constitute substantive limitations on the power of constitutional amendment.

The distinction outlined above is important to the issues presently before the Court. The procedural provisions of s 328 are directly and unambiguously addressed to the respondent. They prescribe steps which the respondent must observe in the very act of legislating. Non-compliance with them is, in principle, capable of grounding an allegation that the respondent has failed to fulfil a constitutional obligation. The obligations prescribed are concrete, ascertainable and capable of resolution without trespass upon any sensitive aspect of the separation of powers. See *Doctors for Life International* (*supra*), at 435 A-D; *Mujuru's* case (*supra*), at 101E-102C.

The procedural mandates of s 328 are not mere abstractions. This Court has, in the past, shown its readiness to entertain an application brought under s 167(2)(d) of the Constitution, founded upon alleged non-compliance with those mandates, and to grant relief where such non-compliance is established. In *Gonese & Anor* v *Parliament of Zimbabwe & Ors* 2020 (1) ZLR 762 (CC), the applicants impugned the manner in which the Senate had passed the Constitution of Zimbabwe Amendment (No. 1) Bill of 2017, contending that the affirmative votes recorded at the third reading had not attained the two-thirds threshold prescribed by s 328(5) of the Constitution. The Court upheld the challenge. It declared that the passing of the affirmative

votes by the Senate on 1 August 2017 was inconsistent with s 328(5) of the Constitution and that the Bill was to that extent invalid. The practical consequence of that order was that the Bill, although ostensibly carried through the parliamentary process, was remitted to the Senate to be put to a fresh vote conducted in compliance with the two-thirds majority requirement.

This case demonstrates that where non-compliance with the procedural requirements of s 328 is established, the ordinary course of action is the remittal of the offending Bill to Parliament. The procedural provisions of s 328 thus impact upon the legislative process itself and a defect in their observance is one which Parliament may be called upon to cure even after the passage of the defective Bill.

The substantive provisions of s 328 and, in particular, s 328(7), upon which the applicant has nailed his mast, are differently constituted. They do not, in the same direct sense, prescribe parliamentary conduct at the stage of initiation or passage of legislation. They constitute limitations against which any resulting amendment must be measured at the appropriate time. They operate as constitutional standards for substantive adjudication and enforcement. The interpretation and authoritative enforcement of these substantive limitations is pre-eminently an adjudicative function of this Court and not of Parliament in its capacity as the legislative organ of the State.

I will not attempt, at this stage, to determine whether s 328(7) imposes upon the respondent a justiciable constitutional obligation within the meaning of s 167(2)(d) of the Constitution. That question is clearly intertwined with the merits and I expressly leave it open. It suffices for the present to observe that the obligation which the applicant seeks to enforce is one of substantive constitutional fidelity in the content of a Bill that is still being processed by the respondent. At what particular stage such an obligation might crystallise into a matter

justiciable in terms of s 167(2)(d) or any other constitutional avenue is a question that arises with particular force in the context of ripeness, which doctrine I intend to address below.

Lastly on the substantive aspect of this case, the Court was invited, in the course of submissions by respondent's counsel, to entertain the proposition that the impugned clauses, properly construed, do not amount to amendments to a term-limit provision within the meaning of s 328(7) of the Constitution. The argument was developed at some length. I pointedly refrain from determining it and shall say no more on the point because it is not necessary to do so at this stage. I now turn to the question of ripeness.

The Doctrine of Ripeness

Ripeness is a principle of justiciability which holds that courts should ordinarily only determine concrete disputes. It occupies a settled and important place in our constitutional jurisprudence and forms part of the broader doctrine of constitutional avoidance. The underlying rationale of the doctrine is that the business of a court is generally retrospective. It deals with disputes that have crystallised and not with prospective, contingent or hypothetical events. A court will not entertain a matter that is premature in the sense that rights or interests have not yet been infringed or threatened. The doctrine prevents the hypothetical engagement of the courts in disputes whose exact parameters are not yet defined. It thereby protects other organs of State from judicial interference until their conduct has assumed its final form and produced concrete consequences.

In *Zimbabwe Women Lawyers Association* v *Minister of Justice, Legal and Parliamentary Affairs & Ors* CCZ-13-21, Garwe JCC (as he then was), at pp 6-7, articulated the doctrine as follows:

> "The principle of ripeness is therefore part of the doctrine of avoidance. The basic rationale of the ripeness principle is to prevent the courts, through avoidance of premature adjudication, from entangling themselves in abstract disagreements over

> administrative policies and to protect the agencies from judicial interference until an administrative decision has been formalised and its effect felt in a concrete way by the litigating parties – *Abbot Laboratories v Gardner* 387 US 136 1967. … Ripeness therefore, entails consideration of the timing of a constitutional challenge. Where a constitutional issue can be dealt with more conveniently at a later stage and the applicant will get no tangible advantage from an earlier ruling, the doctrine of ripeness requires the applicant to wait until the court can ground its decision in a concrete relief. A court will not entertain a matter if it is premature in the sense that rights or interests have not been infringed or threatened."

The doctrine was earlier enunciated by Kriegler J in *Ferreira v Levin N.O. & Ors, Vryehoek* v *Powell N.O. & Ors* 1996 (1) SA 984 (CC), in a passage that has been adopted in this jurisdiction:

> "The essential flaw in the applicant's cases is one of timing or, as the Americans and, occasionally, the Canadians call it, 'ripeness'. … The doctrine of ripeness serves the useful purpose of highlighting that the business of a court is generally retrospective; it deals with situations or problems that have already ripened or crystallised, and not with prospective or hypothetical ones. Although, as Professor Sharpe points out and our Constitution acknowledges, the criteria for hearing a constitutional case are more generous than for ordinary suits, even cases for relief on constitutional grounds are not decided in the air."

Ripeness as understood in the present context was also elaborated more recently by this Court in the *Combined Harare Residents' Association* case (*supra*), at p 39, where Garwe JCC (as he then was) held the following:

> "As noted by Currie and De Waal, op. cit., one of the principles of justiciability relates to ripeness. There are two main senses in which the principle of ripeness has been understood. In the first sense, the principle has been applied in situations where all the facts forming the constitutional cause of action are yet to materialise. Where this is the case, a matter will be said to be unripe for determination because a live dispute or controversy would not yet have arisen. It would, in such circumstances, be premature for a court to pass upon the constitutional dispute before it has actually arisen. This would extend to situations where there are no facts at all relating to the intended cause of action."

The American doctrine, from which the modern formulation of ripeness draws much of its strength, is to the same effect. In *Abbott Laboratories* v *Gardner* 387 US 136 (1967), at pp 148-149, the United States Supreme Court explained that the rationale of the ripeness doctrine is to prevent the courts, through avoidance of premature adjudication, from entangling themselves in abstract disagreements. The point has since been expressed in different ways.

Thus, in *Texas* v *United States* 523 US 296 (1998) at 300, the court observed that a claim is not ripe for adjudication if it rests upon contingent future events that may not occur as anticipated or indeed may not occur at all. All of these observations resonate with particular force in the present matter.

The approach of this Court in matters touching upon ongoing legislative processes closely mirrors the position prevailing in comparable jurisdictions. In the *Doctors for Life International* case (*supra),* at para 68, Ngcobo J observed that:

> "The basic position appears to be that, as a general matter, where the flaw in the law-making process will result in the resulting law being invalid, courts take the view that the appropriate time to intervene is after the completion of the legislative process. The appropriate remedy is to have the resulting law declared invalid. However, there are exceptions to this judicially developed rule or 'settled practice'. Where immediate intervention is called for in order to prevent the violation of the Constitution and the rule of law, courts will intervene and grant immediate relief. But intervention will occur in exceptional cases, such as where an aggrieved person cannot be afforded substantial relief once the process is completed because the underlying conduct would have achieved its object."

This passage was directly applied by this Court recently in the *Fuza* case (*supra*), at p 14, where Makarau JCC observed that the general position of the law is that where the flaw in the law-making process will result in the invalidation of the law, the appropriate time for the Court to intervene is at the completion of the legislative process and not before. See, to similar effect, *Glenister* v *President of the Republic of South Africa & Ors* 2009 (1) SA 287 (CC). The exception to the general rule is narrow. It admits of intervention only where no substantial relief can be afforded once the process has already run its course.

The settled practice is not, as the applicant's argument tends to suggest, a discretionary indulgence rooted in mere institutional courtesy. It is grounded in fundamental constitutional considerations. The first is the doctrine of comity between the organs of State, which is a firm manifestation of the separation of powers. The second is a more pragmatic consideration. A Bill in motion is, by its very nature, capable of change. It may be debated and then amended in

either House. The impugned clauses may be removed altogether. The Bill may even be withdrawn. The specificity of any constitutional question relating to it must therefore be expected to shift and may yet dissolve before the Bill assumes its final form.

In the final analysis, a court that makes pronouncements, on the basis of clauses that may not survive the legislative process, risks adjudicating a question that may not in the end arise at all. That is precisely the nature of speculative controversies or disputes that the doctrine of ripeness is designed to prevent.

Ripeness in the Present Matter

It remains to apply the foregoing principles to the present matter. Several considerations bear upon the question whether the application has been brought at an appropriate stage for the intervention of this Court.

Firstly, at the time when the judgment of the Court in this matter was reserved, the legislative process in respect of the Bill was, in every meaningful sense, in its infancy. The Bill had not been considered or read in either House. The debate contemplated by the Standing Rules and Orders had not yet taken place. The Bill had not been voted upon at any reading. The public consultation phase, mandated by s 328(4) of the Constitution, had only recently been concluded and the views expressed by members of the public were yet to be deliberated upon by the respondent. Members of Parliament may, having regard to those views and to the contributions made at the relevant stages of debate, resolve to adopt the impugned clauses in their present form or to modify them or to omit them altogether. It is also perfectly possible that the Bill might be referred to a national referendum in accordance with s 328(6) of the Constitution. In short, the final shape and form of the Bill remain presently unknown.

Secondly, even if the Bill were to emerge from Parliament with clauses 4(b) and 9(b) intact, further oversight mechanisms remain in place. The President is empowered, by s 131(6)

of the Constitution, to refer the Bill back to Parliament where he entertains reservations about its constitutionality. Should Parliament persist, the President may refer the matter to this Court for an advisory opinion in terms of s 131(8)(b). These are the very mechanisms which the Constitution itself prescribes for the resolution of constitutional concerns at the pre-enactment stage. To intervene at this stage would not only pre-empt the parliamentary process but would also displace and render redundant the constitutional role assigned by the Constitution to the President as a co-constituent of the Legislature. That cannot be the correct adjudicative course.

In addition, the proposition advanced on behalf of the applicant that the respondent is constitutionally obliged to refuse to entertain a Bill which is, in its view, non-compliant with the Constitution cannot be sustained. A Constitutional Bill, by virtue of the framework established by ss 110(3)(c), 117(2) and 328 of the Constitution as read with the Standing Rules and Orders of Parliament, is invariably initiated through Cabinet and presented to Parliament by the responsible Minister. The respondent, for all intents and purposes, has no authority to decline to receive a Bill so presented. Its sole constitutional mandate is to consider the Bill. In the course of so considering it, the respondent may, on its own motion and deliberation, reject it, amend it or pass it. To suggest that the respondent must, before commencing that process, conclude upon the constitutionality of the Bill in its proposed form and refuse to entertain it if it forms an adverse view, undermines the constitutional architecture that the respondent is enjoined to uphold.

Moreover, as a related matter, the applicant's contention that the failure complained of is "already complete", in the sense that the publication of the Bill in its current form is in itself the breach, misapprehends the nature of the obligation said to underlie the application. As I have observed earlier, the obligation invoked by the applicant is one of substantive constitutional fidelity. Substantive constitutional standards of that nature are not finally

engaged by the mere publication of a Bill. They are engaged when an amendment has been enacted into law. Until that moment, the substantive content of the Bill remains a matter for parliamentary debate and resolution. The respondent's function, at this stage, is to deliberate, to consider, to amend, and finally to vote. It cannot, as is suggested, assume the authoritative role of constitutional interpretation. That role belongs to this Court and arises in this context only after the parliamentary process has run its course.

In short, the impugned conduct of the respondent is not complete. It forms part of an ongoing constitutional and legislative process the outcome of which remains genuinely open. I am, accordingly, satisfied that this is not one of the exceptional cases contemplated by the *Doctors for Life International* case (*supra*) in which immediate judicial intervention is called for. The applicant is not, by reason of the deferral of his cause, deprived of substantive relief. If the Bill is rejected or amended in the course of the parliamentary process, the foundation of his complaint will fall away. If the Bill is referred back to the respondent by the President under s 131(6), or referred to this Court by the President under s 131(8)(b), the constitutional questions which he raises will be properly brought before this Court. Should the Bill, in due course, be passed and enacted into law in a form that he continues to impugn, the avenues available to him for challenge are not foreclosed.

Disposition

In the result, for the reasons set out above, the present application is one which is not at this stage ripe for determination by this Court. The matter accordingly falls to be disposed of in a manner that leaves untouched the substantive constitutional issues which the applicant invites this Court to address but which have not as yet crystallised in an appropriately justiciable form.

As regards costs, in keeping with the well-established practice of this Court, no order as to costs is warranted in a constitutional matter of this nature.

In the result, it is ordered as follows:

1. The matter, not being ripe for adjudication by this Court, the Court hereby withholds its jurisdiction.
2. The matter is accordingly struck off the roll with no order as to costs.

GWAUNZA CJ **:** I agree.

GARWE DCJ **:** I agree.

MAKARAU JCC **:** I agree.

GOWORA JCC **:** I agree.

HLATSHWAYO JCC **:** I agree.

GUVAVA AJCC **:** I agree.

Mbidzo, Muchadehama & Makoni, applicant's legal practitioners

Chihambakwe & Partners, respondent's legal practitioners